

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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TONY DAVIS

Plaintiff,

Index No. _____
COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, NEW YORK COUNTY DISTRICT ATTORNEY'S OFFICE
NEW YORK CITY POLICE DETECTIVE HECTOR J. RODRIGUEZ, and
JOHN DOE POLICE OFFICERS 1-10

Defendants.
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Plaintiff, TONY DAVIS by his attorney Lonnie Hart Jr. P.C., complaining of the Defendants

The City of New York (hereinafter referred to as "CITY"), New York City Police Department (hereinafter referred to as "NYPD", NEW YORK COUNTY DISTRICT ATTORNEY'S OFFICE (hereinafter NYDA) New York City Police Detective HECTOR J. RODRIGUEZ (hereinafter referred to as "Det. Rodriguez"), and JOHN DOE POLICE OFFICERS 1-10(hereinafter referred to as John Doe Officers) alleges upon information and belief, as follows:

NATURE OF THE ACTION

1. This is a civil rights action for money damages brought pursuant to 42 U.S.C. §§1983 and 1988, for deprivation of Plaintiff's rights under the Fourth, Fifth, Sixth and Fourteenth Amendments of the United States Constitution, Article 1, Sections 6, 8, and 12 of the New York State Constitution, and the laws of the State of New York, against the City of New York, New York City Police Department, NEW YORK COUNTY DISTRICT ATTORNEY'S OFFICE, New York City Police Detective Hector Rodriguez and John Doe Police Officers, in their individual capacities and official capacities.
2. Plaintiff seeks compensatory and punitive damages, affirmative and equitable relief, an award of attorney's fees and costs, and such other relief as this Court deems equitable

and just.

NOTICE OF CLAIM

3. On or about February 11, 2015, Plaintiff filed a Notice of Claim upon Defendant City of New York, by delivering copies thereof to the person designated by law as a person to whom such a claim may be served.
4. Plaintiff's Notice of Claim was in writing, individually sworn to by Plaintiff, containing his name and address as well as the name and address of his attorney.
5. The Notice of Claim set out the nature of the claims, the time when, the place where, and manner by which the claims arose, and the damages and injuries claimed to have been sustained by Plaintiff.
6. Defendant City sent a letter dated February 20, 2015 to plaintiff acknowledging receipt of the Notice Of Claim.
7. A hearing pursuant to GML §50h was conducted on June 5, 2015.
8. The City of New York has failed to adjust the claims for the Plaintiff within the statutory time period. This action is being commenced within the statutory time period.

THE PARTIES

9. Plaintiff TONY DAVIS (referred to as "PLAINTIFF" throughout this complaint) is a natural person who, at all times mentioned herein, resided in Kings County, New York.
10. At all times hereinafter mentioned the Defendant CITY was and still is a municipal corporation, organized and existing under and pursuant to the laws of the State of New York. It is authorized by law to maintain a Police Department, and to maintain District Attorney's Offices in each of its five boroughs, including NYDA for New York County, which acts as its agents in the area of law enforcement to members of the public and for which it is ultimately responsible. Defendant CITY assumes the risks incidental to the

maintenance of a NYCPD and NYDA, and the employment of police officers, prosecutors and other employees of those agencies, as said risk attaches to the public consumers of the services provided by the New York City Police Department.

11. Defendant NEW YORK CITY POLICE DETECTIVE HECTOR J. RODRIGUEZ was at all times relevant herein a duly appointed and acting officer, servant, employee and agent of the Defendant CITY and/or NYPD, a municipal agency of Defendant CITY. Said individual Defendant was at all times relevant herein acting under color of state law In the course and scope of his duties and functions as an officer, agent, servant, and employee of Defendant CITY, was acting for, and on behalf of and with the power and authority vested in them by Defendant CITY and NYPD and was otherwise performing and engaging in conduct incidental to the performance of his lawful functions in the course of his duties. Defendant NEW YORK CITY POLICE DETECTIVE HECTOR J. RODRIGUEZ is sued in his official capacity and individually.
12. Defendant JOHN DOE POLICE OFFICERS 1-10 was at all times relevant herein a duly appointed and acting officer, servant, employee and agent of the Defendant CITY and/or NYPD, a municipal agency of Defendant CITY. Said individual Defendant was at all times relevant herein acting under color of state law in the course and scope of his duties and functions as an officer, agent, servant, and employee of Defendant CITY, was acting for, and on behalf of and with the power and authority vested in them by Defendant CITY and NYPD and was otherwise performing and engaging in conduct incidental to the performance of his lawful functions in the course of his duties. Defendant JOHN DOE POLICE OFFICER is sued in his official capacity and individually.

FACTS

Plaintiff's unlawful arrest and unlawful imprisonment arose on or about December 31, 2013 at approximately 6:00pm inside of 9816 Flatlands Avenue Apartment 1 in Brooklyn. At the approximate time and place, plaintiff was lawfully inside of the residence when defendants Hector Rodriguez and John doe police officers 1-10 entered the location by breaking down the door to said premises with a battering ram.

Defendants entered the location with shields, body armor and guns drawn. Defendants claimed to have a search warrant for the location. Plaintiff's wife and 9 month old son were inside the premises at the time.

Defendants recovered a quantity of Oxycodone pills that were in prescription bottles with plaintiff's name on them. Defendants emptied the pill bottles and placed all of the pills into one plastic bag to make it appear as if plaintiff had possessed the pills illegally and intended to sell them.

Defendant also recovered approximately \$31,000.00 in United States Currency from a safe inside the location. Plaintiff told Defendant Det. Rodriguez he had a prescription for the pills and that he could prove the United States currency was obtained from a deceased family member.

Plaintiff was thrown to the ground, handcuffed and arrested. Approximately 2 other people were arrested inside the location. Plaintiff was charged with felony gun and drug possession and conspiracy counts.

At the initial arraignment, \$50,000 bond and \$25,000 cash bail was set against plaintiff. Plaintiff spent approximately five and a half months in jail until his bail was reduced to \$25,000 bond and \$10,000 cash in April of 2014. plaintiff was able to make bail in May of 2014.

Plaintiff was forced to prove his own innocence by proving to defendant NYDA that he had a prescription for the pills that were recovered and bank statements proving where the United States currency that was recovered had originated from.

Despite the strong evidence of plaintiff's innocence, the defendants allowed the case to drag on until the New York County DA's office dismissed the case on their own motion on November 13, 2014.

As a result of plaintiff's false arrest and false imprisonment plaintiff has suffered emotional distress and public humiliation. Plaintiff and his wife's names were mentioned in a local newspaper called the Canarsie Courier. In the Courier, plaintiff and his wife were referred to as the "Canarsie Drug Duo". Plaintiff and his wife were falsely painted as major drug dealers based upon the actions of the defendants. Plaintiff has suffered anxiety and sleeplessness as a result.

FIRST CAUSE OF ACTION

(42 U.S.C. § 1983; DENIAL OF DUE PROCESS AND A FAIR TRIAL UNDER THE FOURTH AND FOURTEENTH AMENDMENTS; DEFENDANTS RODRIGUEZ and JOHN DOE)

13. Plaintiff re-alleges and incorporates by reference the allegations set forth in the foregoing paragraphs 1 through 12 as if fully set forth herein.

14. By their conduct and actions in maliciously prosecuting, violating the rights to due process, concealing evidence and fabricating a false identification and/or evidence regarding plaintiff, Defendants RODRIGUEZ and JOHN DOE acting under color of law and without lawful justification, intentionally, maliciously and with deliberate indifference to or a reckless disregard for the natural and probable consequences of their acts, caused injury and damage in violation of plaintiff's constitutional rights as guaranteed under 42 U.S.C. sec 1983 and the United States Const, including the Fourth and Fourteenth Amendments.

15. As a result of the foregoing, plaintiff was deprived of his liberty, experienced pain and suffering, psychological and emotional injury, great humiliation, costs and expenses and was otherwise damaged and injured.

SECOND CAUSE OF ACTION

(MALICIOUS PROSECUTION UNDER U.S.C. § 1983)

16. Plaintiff re-alleges and incorporate by reference the allegations set forth in the foregoing paragraphs 1 through 15 as if fully set forth herein.

17. Defendants RODRIGUEZ and JOHN DOE did knowingly initiate the criminal prosecution of Plaintiff by swearing to under oath a fabricated criminal court complaint.

18. Defendants RODRIGUEZ and JOHN DOE manufactured, or caused to be manufactured, false, unreliable and/or misleading “evidence” intending it to be used by the prosecution in determining whether to initiate criminal proceedings against Plaintiff, which “evidence” was used by the prosecution.

19. By virtue of the foregoing, Defendants RODRIGUEZ and JOHN DOE, with actual malice, initiated and continued or caused the initiation and continuance of, criminal proceedings against Plaintiff for which they knew or should have known there was no probable cause and for which in fact there was no probable cause and thereby caused Plaintiff to be deprived of his liberty.

20. Such proceeding ultimately was terminated in Plaintiff’s favor.

21. The aforementioned conduct of Defendants RODRIGUEZ and JOHN DOE which committed, operated to deprive Plaintiff of his rights under the constitution and laws of the United States, to (a) Not be prosecuted upon false, fabricated, manufactured, misleading or inherently unreliable "evidence" including statements and documents and; (b) Not be deprived of his liberty absent probable cause to believe they have committed a crime in violation of their rights under the Fourth and Fourteenth Amendments to the United States Constitution; and

22. The foregoing violations of Plaintiff’s federal constitutional rights by Defendants RODRIGUEZ and JOHN DOE which substantially, proximately, and foresee ably caused the initiation and continuation of Plaintiff’s criminal prosecution, loss of liberty and other injuries and damages.

23. The foregoing violations of Plaintiff’s rights amounted to Constitutional torts and within

the scope of Defendants RODRIGUEZ and JOHN DOE employment and authority.

24. Defendants RODRIGUEZ and JOHN DOE committed the foregoing violations of Plaintiff's rights knowingly, intentionally, willfully and/or with deliberate indifference to Plaintiff's constitutional rights or to the effect of such misconduct upon Plaintiff's constitutional rights.

25. As a result of the foregoing, plaintiff was deprived of his liberty, experienced pain and suffering, psychological and emotional injury, great humiliation, costs and expenses and was otherwise damaged and injured.

THIRD CAUSE OF ACTION

(MONELL CLAIM UNDER § 1983)

26. Plaintiff re-alleges and incorporate by reference the allegations set forth in the foregoing Paragraphs 1 through 25 as if fully set forth herein.

27. At all times material to this complaint, Defendant CITY, acting through its NEW YORK CITY POLICE DEPARTMENT and through the NEW YORK COUNTY DISTRICT ATTORNEY'S OFFICE, and through the individual Defendants had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

28. At all times material to this complaint, Defendant CITY, acting through its NEW YORK CITY POLICE DEPARTMENT and through the NEW YORK COUNTY DISTRICT ATTORNEY'S OFFICE and through the individual Defendants and other employees, had de facto policies, practices customs, and usages of failing to properly train, screen, supervise, or discipline employees, police officers, prosecutors, and of failing to inform the individual Defendants' and other employees' supervisors of their need to train, screen, supervise or discipline said Defendants and employees. These policies, practices, customs and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.

29. At all times material to this complaint, Defendant CITY, acting through its NEW YORK CITY POLICE DEPARTMENT, and through the individual Defendants, has de facto policies, practices, customs, and usages of encouraging and/or tacitly sanctioning the cover-up of other law enforcement officers' misconduct, through the fabrication of false accounts and evidence and/or through "the blue wall of silence". These policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.

30. Over a period of time the NEW YORK COUNTY DISTRICT ATTORNEY'S OFFICE engaged in a pattern of allowing witnesses to manufacture, or caused to be manufactured, false, unreliable and/or misleading testimony intending it to be used to wrongfully convict criminal defendants.

31. Over a long period of time the NEW YORK COUNTY DISTRICT ATTORNEY'S OFFICE has engaged in a pervasive pattern of misconduct designed and practiced to systematically and with deliberate indifference deny basic rights to defendants under the Constitutional of the United States,

32. Over a period of time the NEW YORK COUNTY DISTRICT ATTORNEY'S OFFICE has engaged in an unlawful office-wide policy, culture and practice of aggressively flaunting the Constitution of the United States by withholding Brady material to criminal defendants including the plaintiff herein.

33. The conduct of the NEW YORK CITY POLICE DEPARTMENT and the NEW YORK COUNTY DISTRICT ATTORNEY'S OFFICE in the within case is part of an ongoing pattern of corruption, indifference and ineptitude that is the result of a system wide lack of proper training, guidance and supervision.

34. As a result of the foregoing, plaintiff was deprived of his liberty, experienced pain and suffering, psychological and emotional injury, great humiliation, costs and expenses including but not limited to counsel fees for criminal defense attorney and was otherwise damaged and injured.

FOURTH CAUSE OF ACTION

36. Paragraphs 1 through 35 of this complaint are incorporated herein by reference as though fully set forth herein.

37. Defendants falsely arrested and unlawfully imprisoned Plaintiff, or caused Plaintiff to be falsely arrested and unlawfully imprisoned, by way of their above-described actions.

38. Plaintiff claims damages against each Defendant, under 42 U.S.C. § 1983, for the injuries set forth above suffered by Plaintiff as a result of their false arrest and unlawful imprisonment.

FIFTH CAUSE OF ACTION

39. Paragraphs 1 through 38 of this complaint are incorporated herein by reference as though fully set forth herein.

40. Defendants intentionally inflicted emotional distress upon Plaintiff by way of Defendants' above-described actions.

41. Plaintiff claim damages against each Defendant, under 42 U.S.C. § 1983, for the injuries set forth above suffered by Plaintiff as a result of the Defendants intentional infliction of emotional distress upon Plaintiff.

SIXTH CAUSE OF ACTION

42. Paragraphs 1 through 41 of this complaint are incorporated herein by reference as though fully set forth herein.

43. Defendants negligently inflicted emotional distress upon Plaintiff by way of Defendants' above-described actions.

44. Plaintiff claim damages against each Defendant, under 42 U.S.C. § 1983, for the injuries set forth above suffered by Plaintiff as a result of the Defendants negligent infliction of emotional distress upon Plaintiff.

SEVENTH CAUSE OF ACTION

45. Paragraphs 1 through 44 of this complaint are incorporated herein by reference as though fully set forth herein.

46. By way of their above-described actions, each of the Defendants, acting under color of law, violated Plaintiff's rights under Article 1, Sections 6 and 12 of the New York State Constitution.

47. As a result of this violation of Plaintiff's New York State constitutional rights, Plaintiff suffered injuries and claims damages for said injuries.

WHEREFORE Plaintiff, TONY DAVIS demands judgment against the Defendants and demands:

- (a)Compensatory damages in the sum of \$1,000, 000.00(One Million Dollars).
- (b)Punitive damages in the amount of \$1,000,000.00 (One Million Dollars).
- (c) Costs and attorney's fees under 42 U.S.C. § 1988.
- (d)Such other and further relief as this court may deem appropriate and equitable.
- (e)Plaintiff demands a jury trial.

Dated: Brooklyn, New York

August 3, 2015



Lonnie Hart Jr.
26 Court Street, Suite 714
Brooklyn, New York 11242
(718) 246-8200

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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TONY DAVIS

Plaintiff,

Index No.: _____

-against-

SUMMONS

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, NEW YORK COUNTY DISTRICT ATTORNEY'S OFFICE
NEW YORK CITY POLICE DETECTIVE HECTOR J. RODRIGUEZ, and
JOHN DOE POLICE OFFICERS 1-10

Defendants.

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To the above-named Defendants:

YOU ARE HEREBY SUMMONED: to answer the complaint in this action and to serve a copy of your answer, or if the Complaint is not served with this Summons, to serve Notice of Appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York
August 3, 2015

LAW OFFICES OF LONNIE HART JR., P.C.
Attorney(s) for the Plaintiff
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(718) 246-8200